

#	Case Name	Tentative
		The parties shall be prepared to discuss a trial date. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	The court has read and considered the additional briefing regarding issues to be tried in Phase 2. The parties are ordered to submit an additional joint filing that (1) identifies each cause of action that remains from the Records Case and the Election Case; (2) for each remaining cause of action, the parties shall identify the elements of each cause of action by reference to the CACI model instructions; and (3) the parties shall analyze which elements (if any) have been established as a result of the court's ruling concerning the Phase 1 bench trial. The additional joint briefing shall be submitted no later than September 24, 2026. The court sets a status conference regarding the Phase 2 trial for October 5, 2026 at 2:00 p.m. in Department C28. Defendants shall give notice of this ruling.
58.	PeproMene Bio, Inc. v. Seo 2024-01423532	Defendant Youngjin Seo's Motion to Set Aside and Vacate the Default is DENIED. Pursuant to Code of Civil Procedure §§ 473.5 and 473(b), Defendant seeks to set aside the default that was entered on December 8, 2025. CCP § 473.5 Code of Civil Procedure section 473.5 provides for setting aside a default or default judgment "when service of the summons and complaint has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action." Code Civ. Proc. § 473.5(a). This section is designed to provide relief where there has been <i>proper</i> service of the summons, but the defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (<i>See Trackman v. Kenney</i> (2010) 187 Cal.App.4th 175, 180.) "A party moving under section 473.5 must submit an affidavit, based on personal knowledge rather than hearsay or conclusory assertion, showing that the lack of actual notice

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		was not the product of the party's own inexcusable neglect or avoidance of service." (<i>Anastos v. Kuo Chen Lee</i> (2004) 118 Cal.App.4th 1314, 1322–1323.) Defendant states he did not receive actual notice of the Summons and Complaint in this action, nor was he properly served. (Seo Decl., ¶ 3.) While perhaps Defendant did not actually see the Summons and Complaint, he had notice of this lawsuit and has actively participated in it, including submitting declarations. Defendant was represented by counsel who filed an opposition to the TRO (ROA 24) and motion for preliminary injunction (ROA 46) on his behalf, and filed an anti-SLAPP motion (ROA 74). Therefore, Defendant is not entitled to relief from default under Section 473.5. CCP § 473(b) Section 473(b) provides for discretionary relief from defaults/default judgments (among other orders/proceedings) entered against a party through his "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Relief is mandatory if is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect. (Ibid.) To obtain this relief, the moving party must show specific facts demonstrating that one of these conditions have been met, and that he has diligently brought this motion after discovering the default. (See <i>Hopkins & Carley v. Gens</i> (2011) 200 Cal.App.4th 1401, 1410.) Section 473(b) further provides that "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted," and that the application must be filed no later than six months after the subject order/judgment was taken. (Code Civ. Proc., § 473, subd. (b).) While Section 473 is to be liberally construed, "the moving party must show 'mistake, inadvertence, surprise or excusable neglect' by a preponderance of the evidence." (<i>Luz v. Lopes</i> (1960) 55 Cal.2d 54, 62.) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134.)

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		“When evaluating a motion to set aside a default judgment on equitable grounds, the ‘court must weigh the reasonableness of the conduct of the moving party in light of the extent of the prejudice to the responding party.’ ” (Id. at 139 [citation omitted].) “When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys [citations]. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney [citation].’ [Citations.] In other words, when a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome, and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel.” (<i>Burnete v. La Casa Dana Apartments</i> (2007) 148 Cal.App.4th 1262, 1267.) Defendant states he is a native Korean speaker with limited proficiency in English and therefore did not understand or appreciate the legal significance of not being represented by counsel. Despite this assertion, Defendant has previously submitted declarations in this case in English, and was able to file the motion for relief from default as well as a reply in English, indicating an understanding of the English written language. Defendant also claims he had medical incapacity throughout 2025 due to severe major depressive disorder and anxiety, as well as stomach cancer. Defendant also claims he was physically and mentally incapable of protecting his legal rights. Defendant submits a letter from Dr. Thomas Lin dated August 9, 2025, indicating Defendant suffers from major depressive disorder and needs to avoid participation in a legal deposition. Dr. Lin makes no mention that Defendant was unable to appreciate or engage in life events, such as the ongoing litigation, or that he was on heavy, sedating psychiatric medication as Defendant claims. There is also no documentation from December 2025 when the default was entered, to the present, which substantiates his claimed disorder. Moreover, the default was entered on December 28, 2025, and Defendant did not file this motion seeking to set aside the default until June 16, 2026. He does not state he was incapacitated in 2026 and offers no reason why he waited almost six months to seek relief.

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		Defendant has also not attached an answer to the Complaint with his motion as required by Section 473(b). Based on the foregoing, Defendant is not entitled to relief under Section 473(b). Accordingly, the motion is DENIED. The court continues the status conference to October 30, 2026 at 9:00 a.m. in Department C28. Prior to that date, the court will review the proposed default judgment packet. If it comports with the necessary requirements, the court will sign the default judgment. If there are omissions, or other shortcomings, the court will issue a minute order prior to the continued date that describes the necessary next steps. Plaintiff shall give notice of this ruling.
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63.	Quick Bridge Funding LLC v. CJC ATL Transport LLC 2024-01429048	Plaintiff Quick Bridge Funding, LLC's unopposed motion for summary judgment against defendant Curtis Grace Jr. as to the first and only cause of action against Defendant for breach of contract is GRANTED. A plaintiff may move for summary judgment of a cause of action under CCP § 437c(f)(1), when the plaintiff asserts that there is "no defense" to that cause of action. The plaintiff's burden of proof on such a motion is defined by CCP § 437c(p)(1), i.e., the plaintiff must prove each element of the cause of action that entitles the plaintiff to judgment on that cause of action. <i>Paramount Petroleum Corp. v Superior Court</i> (2014) 227 CA4th 226, 241, 173 CR3d 519. Plaintiff seeks adjudication that Grace breached the settlement agreement between the parties and seeks damages thereon. A settlement agreement is a contract, and its validity is judged by the same legal principles applicable to contracts generally. <i>Stewart v. Preston Pipeline Inc.</i> (2005) 134 Cal.App.4th 1565. The elements of a cause of action for breach of contract are: 1. the contract, 2. the plaintiff's performance or excuse for nonperformance,